

25VECV01662 25VECV01662

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-08-19

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Case Number: 25VECV01662 Hearing Date: August 19, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ABDULLAH TURABAZ,

Plaintiff,

vs.

VOLKSWAGEN GROUP OF AMERICA, INC., a New Jersey Corporation; and DOES 1 through 20, inclusive,

Defendants.

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CASE NO.: 25VECV01662

ORDER GRANTING DEFENDANT'S MOTION TO QUASH PLAINTIFF'S NOTICE IN LIEU OF SUBPOENA TO COMPEL ATTENDANCE AT TRIAL

I. BACKGROUND

This is a lemon law action. Plaintiff Abdullah Turabaz ("Plaintiff") alleges the new 2024 Audi Q5 (Subject Vehicle) purchased from Defendant Volkswagen Group of America, Inc., ("Defendant") had serious defects at delivery and developed additional defects, primarily involving the steering and suspension systems.

Defendant moves to quash Plaintiff's Notice in Lieu of Subpoena to Compel Attendance of Defendant's Person Most Qualified, Sal Mazzara, served via e-mail on Defendant's counsel.

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II. PROCEDURAL HISTORY

On March 24, 2025, Plaintiff filed a Complaint against Defendant asserting two causes of action for: (1) Breach of Express Warranty Under the Song-Beverly Consumer Warranty Act; and (2) Breach of Implied Warranty Under the Song-Beverly Consumer Warranty Act.

On April 24, 2025, Defendant filed its Answer.

On January 27, 2026, the Court corrected nunc pro tunc the January 12, 2026 Order to state that Defendant's discovery motions were granted.

On March 16, 2026, the Court denied Defendant's Motion to Compel Vehicle inspection.

On July 22, 2026, Defendant filed the instant Motion.

As of August 18, 2026, no opposition has been filed.

Jury trial is scheduled for September 2, 2026.

III. LEGAL STANDARD

"If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein...the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." (Code Civ. Proc. § 1987.1(a).) [1]

"In the case of the production of a party to the record of any civil action or proceeding or of a person for whose immediate benefit an action or proceeding is prosecuted or defended or of anyone who is an officer, director, or managing agent of any such party or person, the service of a subpoena upon any such witness is not required if written notice requesting the witness to attend before a court, or at a trial of an issue therein, with the time and place thereof, is served upon the attorney of that party or person." (Id., § 1987(b).)

IV. ANALYSIS

Defendant moves to quash the Notice in Lieu of Subpoena demanding that Defendant produce its Person Most Knowledgeable, Sal Mazzara, at trial on grounds that a written notice is not permissible for this witness who is neither Defendant's officer, director, or managing agent pursuant to Code of Civil Procedure § 1987(b). (See Mot. at 5:4-15.)

There is no opposition filed.

The Court will grant the Motion. Under statute providing the service of a subpoena upon the managing agent of a plaintiff is not required if written notice requesting the witness to attend before a court is served upon the attorney of that party, a "managing agent" includes only those corporate employees who exercise substantial independent authority and judgment in their corporate decision-making so that their decisions ultimately determine corporate policy. (See *Target National Bank v. Rocha* (2013) 216 Cal.App.4th Supp. 1, 9, fn. 1.) Here, Defendant's position that its PMK is not an officer, director, or managing agent is undisputed. (See Notice at 2:10-11.) Further, Plaintiff failed to file any opposition, effectively conceding to the merits of the Motion and consenting to the Court granting the relief requested. (See Rules of Court, rule 8.54(c) ["A failure to oppose a motion may be deemed a consent to the granting of the motion."]; *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Thus, the Court GRANTS Defendant's Motion to Quash Notice in Lieu of Subpoena.

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V. CONCLUSION

Based on the foregoing, the Court the Court GRANTS Defendant's Motion to Quash Notice in Lieu of Subpoena.

IT IS SO ORDERED.

DATED: August 19, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.